

IFEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

PKDC, LLC, *Complainant*

v.

COSCO SHIPPING LINES CO., LTD., *Respondent*.

DOCKET NO. 25-07

Served: May 6, 2026

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge*.

ORDER GRANTING MOTIONS TO WITHDRAW AND EXTEND SCHEDULING ORDER

This matter came on for consideration of Complainant's: 1) Motion to Withdraw Certain Counsel for Complainant (Dkt. 37); and 2) Motion to Extend Scheduling Order (Dkt. 38). For the reasons set for below, both motions are **GRANTED**, and the deadline to complete fact witness depositions is extended by 30 days.

In the motion to withdraw, Complainant seeks leave for two of its counsel to withdraw with a plan for an attorney who entered an appearance on April 16, 2026, and is unfamiliar with the case, to represent Complainant moving forward. The motion asserts that both of Complainant's former lead attorneys are no longer available to provide legal representation, one having a serious illness rendering him unable to work and the other having left the firm unexpectedly and no longer practicing law.

In the motion to extend the scheduling order, Complainant seeks a 30-day extension of the deadline to depose fact witnesses, that is from May 5, 2026, to June 4, 2026. Complainant states in the body of the motion that the parties conferred and that Respondent consents to the requested extension. Complainant asserts that an extension is necessary so that its new counsel can familiarize himself with the case in order to effectively represent Complainant moving forward, to accommodate new counsel's need to simultaneously handle other assigned matters requiring his attention, and to accommodate Complainant's corporate representative, who is not available for deposition on the currently scheduled date of May 6, 2026.

As an initial matter, it is unclear from the record whether or not a motion seeking leave to withdraw is necessary in this instance. 46 C.F.R. § 502.23(e) only requires a motion to be filed where: 1) written consent is not obtained; or 2) if the party is not otherwise represented. Otherwise, filing a stipulation of substitution is the appropriate mechanism. 46 C.F.R. § 502.23(d).

Despite the uncertainty as to the appropriate mechanism to accomplish the task at hand, I find that entry of an order granting leave to withdraw is warranted because Complainant remains

represented, prior counsel are no longer available to represent Complainant, and the interests of judicial efficiency are promoted by disposing of both pending motions simultaneously in a manner that avoids further delay of this administrative proceeding.

With respect to the motion to extend the scheduling order, I find that good cause exists to extend the schedule as requested. It is obvious that new counsel will require time to familiarize himself with the case in order to effectively take over representation of an ongoing matter, and the period of 30 days is reasonable under the circumstances.

Accordingly, both the motion to withdraw and motion to extend scheduling order are **GRANTED**. The deadline to complete depositions of fact witness is extended by 30 days to **June 4, 2026**. All other deadlines established in the order extending the schedule issued April 7, 2026, remain in effect (Dkt. 34.)

MARY A. HERVEY -S

Mary Apostolakos Hervey
Administrative Law Judge

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